

TENTATIVE RULINGS

DEPT CM2

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Wednesday afternoon immediately preceding Thursday's hearing. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: acarbajal@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for a hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal. App. 4th 436, 442 (2012), fn. 1.

Appearances: Department CM2 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to Code of Civil Procedure § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court’s website at <https://www.occourts.org/civil-remote-hearings> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
September 3, 2026

#	Case Name	Tentative
1.	30-2023-01323955-CU-OE-CJC Guzman vs. City of Santa Ana	Before the Court is a Motion to Compel Further Deposition Testimony (“Motion”) brought by defendant City of Santa Ana (“Defendant”) against plaintiff David Guzman (“Plaintiff”). ROA 307. Defendant seeks an order, pursuant California Code of Civil Procedure Section 2025.480: (i) compelling Plaintiff’s further deposition testimony; and (ii) imposing sanctions against Plaintiff and Plaintiff’s attorney, Corey Glave, jointly and severally, in the amount of \$9,275, plus the expenses incurred in obtaining a second court reporter, should the Court grant this Motion. ROA 307, p.2. Plaintiff requests that the Court deny Defendant’s Motion and seeks an order imposing monetary sanctions upon defense counsel in the amount of \$7,500.00. ROA 330, pp. 12, 13.

		Relevant Timeline of Events On October 1, 2025, the parties entered into a protective order, which covers “<i>Pitchess</i>” materials that have already been disclosed. ROA 238. On April 6, 2026, the parties entered into another protective order, which covers other discovery that either party would like to designate confidential. ROA 286. On May 18, 2026, Plaintiff party sat for deposition (“the Deposition”). ROA 305 p. 2. Plaintiff’s counsel raised objections and instructed Plaintiff not to answer numerous questions at the Deposition. <i>See generally</i> ROA 303. Plaintiff complied with his counsel’s advice. <i>Id.</i> On May 21, 2026, Defendant’s counsel sent Plaintiff’s counsel a meet and confer correspondence by email, addressing Plaintiff’s refusal to answer numerous questions at the Deposition. ROA 305 p. 2. The same day the parties met and conferred, via telephone, to discuss Plaintiff’s response. <i>Id.</i> The parties were unable to resolve their dispute at that time. <i>Id.</i> On June 4, 2026, Defendant’s counsel emailed Plaintiff’s counsel in an additional attempt to resolve the alleged noncompliance at the Deposition. <i>Id.</i> On June 12, 2026, Defendant served the herein Motion upon Plaintiff by email. ROA 307, p. 11. Motions to Compel Further Deposition Testimony California Code of Civil Procedure Section 2025.480 states that “[i]f a deponent fails to answer any question or to produce any document . . . or tangible thing under the deponent’s control that is specified in the deposition notice . . . the party seeking discovery may move the court for an order compelling . . . production.” Cal. Civ. Proc. Code § 2025.480(a). The moving party must submit their motion “no later than [sixty] 60 days after the completion of the record, and shall be accompanied by a meet and confer declaration Cal. Civ. Proc. Code § 2025.480(b). Motions filed beyond this period are untimely and must be
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	denied. <i>See Unzipped Apparel, LLC v. Bader</i>, 156 Cal. App. 4th 123, 136 (2007). The required meet and confer declaration must satisfy the statutory requirements of California Code of Civil Procedure Section 2016.040 only when a party seeks a deponent's <i>further</i> responses to questions posed at deposition. Cal. Civ. Proc. Code § 2016.040 (emphasis added); <i>compare</i> Cal. Civ. Proc. Code § 2025.480 (targeting a deponent's refusal to answer questions or produce documents during the deposition itself) <i>with</i> Cal. Civ. Proc. Code § 2025.450 (targeting a deponent's failure to appear or participate before or at the outset of a deposition). Effective January 1, 2026, a meet and confer declaration under California Code of Civil Procedure Section 2016.040, "shall state facts showing a reasonable and good faith attempt" on the part of the moving party to meet and confer either in person, telephonically, or by videoconference; e-mail alone will not suffice. Cal. Civ. Proc. Code § 2016.040(a). The meet and confer declaration <i>must</i> include a statement of "whether the moving party has met and conferred, including through an electronic communication, <i>regarding</i> the retention of a certified shorthand reporter to report the hearing on the motion." Cal. Civ. Proc. Code § 2016.040(b) (emphasis added). Here, as outlined above, Defendant served the herein Motion upon Plaintiff, by email, on June 12, 2026. ROA 307, p. 11. Accordingly, the Motion is subject to the updated meet and confer requirements of California Code of Civil Procedure Section 2016.040(b). The Court finds that Defendant's declaration in support of Defendant's Motion lacks a valid attestation regarding the retention of a certified court reporter required by California Code of Civil Procedure Section 2016.040(b). <i>See generally</i> ROA 305 (declaration in support of Motion). Defendant's counsel is well advised to carefully review California Code of Civil Procedure section 2016.040(b), specifically the requirements applicable to a motion to compel further responses at deposition under California
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		Code of Civil Procedure section 2025.480. Accordingly, the Court will reluctantly proceed to consider the merits of the herein Motion, but will likely exercise its discretion not to proceed on the merits of any motion in the future if all procedural requirements are not satisfied. Objections at Deposition California Code of Civil Procedure section 2025.460 governs objections and the preservation of privilege and work product claims at depositions. <i>See</i> Cal. Civ. Proc. Code § 2025.460. A deponent must generally answer all questions asked during an oral deposition unless a valid objection is asserted that permits a refusal to answer. <i>See Id.</i> Specifically, a deponent may refuse to answer questions based on the following grounds: (i) Privilege or Protected Work Product; and (ii) Suspension for a Protective Order. <i>See Id.</i> Section 2025.460(a) states, “the protection of information from discovery on the grounds that it is privileged or that it is protected work product . . . is waived unless a specific objection to its disclosure is timely made during the deposition.” Cal. Civ. Proc. Code § 2025.460(a). Thus, a party asserting privilege or attorney work product must make a specific and timely objection on the record during the deposition to preserve the protection. Section 2025.460(b) states, “[e]rrors and irregularities of <i>any kind occurring at the oral examination</i> that might be cured if promptly presented are waived unless a specific objection to them is timely made during the deposition.” Cal. Civ. Proc. Code § 2025.460(b) (emphasis added). This requirement includes objections concerning “the form of any question or answer.” <i>Id.</i> Moreover, “[u]nless the objecting party demands that the taking of the deposition be suspended to permit a motion for a protective order . . . <i>the deposition shall proceed subject to the objection.</i>” <i>Id.</i> (emphasis added). Accordingly, where a party seeks to suspend a deposition to obtain a protective order, it must make that demand during the deposition otherwise the
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	deposition generally proceeds. Section 2025.460(c) states, “[o]bjections to . . . the relevancy, [or] materiality . . . of the testimony or of the materials produced are unnecessary and are not waived by failure to make them before or during the deposition.” Cal. Civ. Proc. Code § 2025.460(c). Here, as outlined above, Plaintiff appeared for the Deposition, but refused to answer numerous questions following objections and instructions from counsel. <i>See generally</i> ROA 303. Plaintiff’s counsel raised objections on the grounds of: (i) attorney client privilege as to questions 30-40, 42, 44-49, 56, 59, 79-81, 84-88, 91-102, 104; (ii) attorney work product as to questions 32, 34-39, 40, 42, 47-49, 56, 59, 79-80, 84, 87-88, 91, 93-102, 104; and (iii) union privilege as to question 99. The Court finds that Plaintiff had a duty to proceed with testimony at the Deposition in which privilege or attorney work product objections were not raised as to questions 1-29, 41, 43, 50-55, 57-58, 60-78, 82-83, 89-90, and 103. <i>See generally</i> ROA 303; <i>see</i> Cal. Civ. Proc. Code §§ 2025.46, 2018.030; <i>see also</i> Cal. Evid. Code § 954 (Lawyer-client privilege). Accordingly, the objections raised at the Deposition in as to questions 1-29, 41, 43, 50-55, 57-58, 60-78, 82-83, 89-90, and 103, relating to errors and irregularities of any kind, or to relevancy or materiality, are OVERRULED as a basis for refusing to answer questions. Plaintiff shall answer the questions identified in the Court’s Order as nonprivileged and otherwise discoverable. Attorney-Client Privilege Generally, the attorney-client privilege authorizes a client, whether or not a party, to refuse to disclose, and prevent others from disclosing, confidential communications between the client and his or her lawyer. Cal. Evid. Code § 954. The attorney client privilege is “absolute and prevents disclosure of the communication [between a client
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		and attorney] regardless of its relevance, necessity or other circumstances peculiar to the case.” <i>Kerner v. Super. Ct.</i>, 206 Cal. App. 4th 84, 111 (2012) (citing <i>Costco Wholesale Corp. v. Super. Ct.</i>, 47 Cal.4th 725, 733, 101 (2009)). A communication between a client and their attorney is not privileged “unless the client <i>intends</i> that it be treated in confidence.” <i>D.I. Chadbourne, Inc. v. Super. Ct.</i>, 60 Cal. 2d 723, 732 (1964) (citations omitted); <i>see</i> Cal. Evid. Code § 952 (defining confidential communication as that “information transmitted between a client and [their] lawyer in the course of that relationship and in confidence by a means which, so far as the client is aware discloses the information to no third persons other than those who are present to further the interest of the client . . .”). The privilege only extends to requests which <i>call for</i>, rather than <i>refer to</i> confidential communications between attorney and client. <i>Coy v. Super. Ct.</i>, 58 Cal. 2d 210, 219 (1962) (finding that a question seeking to elicit the date on which a party made a confidential communication with their attorney, rather than the substance of the communication, did not fall within the purview of the attorney client privilege.) “The attorney-client privilege . . . does not protect disclosure of the underlying facts upon which the communications are based.” <i>Benge v. Super. Ct.</i>, 131 Cal. App. 3d 336, 349 (1982) (citations omitted). The party asserting the privilege bears the initial burden of presenting facts necessary to support a finding that the communication was “made in the course of an attorney-client relationship.” <i>Costco Wholesale Corp.</i>, 47 Cal. 4th at 733 (citations omitted). The burden then shifts to the propounding party to establish that either that “the communication was not confidential or that the privilege does not for other reasons apply[,]” <i>e.g.</i>, that the privilege was waived. <i>Id.</i>, (citations omitted)). To the extent the Deposition questions seek Plaintiff’s own acts, conduct, observations, knowledge, or other underlying facts, rather than the substance of a confidential attorney-client communication, the attorney-client privilege does not provide a basis for Plaintiff’s refusal to answer. Accordingly, objections raised as to questions 30, 32-36, 40,
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	44-49, 56, 59, 79-81, 84-88, 91-102, and 104 are OVERRULED. Furthermore, the record does not establish that the attorney client privilege applies to questions numbered 31, 37-39, and 42. Accordingly, the objections to questions 31, 37-39, and 42 are OVERRULED. Accordingly, Plaintiff had no basis in fact or in law for refusing to answer the questions identified above at the Deposition. Attorney Work Product California Code of Civil Procedure Section 2018.030 declares that “[a] writing that reflects an attorney’s impressions, conclusions, opinions, or legal research or theories is not discoverable <i>under any circumstances</i>.” Cal. Civ. Proc. Code § 2018.030(a). Attorney work product that does not meet the definition of Section 2018.030(a) is afforded qualified protection. <i>Coito v. Super. Ct.</i>, 54 Cal. 4th 480, 488 (2012). Courts may permit the disclosure of attorney work product provided qualified protection, but <i>only</i> upon a determination “that the denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” Cal. Civ. Proc. Code § 2108.030(b). Here, the Court finds that no question posed during the Deposition impermissibly sought a writing, or the substance of a writing, reflecting an attorney’s impressions, conclusions, opinions, legal research or theories. Accordingly, no question posed during the Deposition sought information protected by the attorney work product doctrine. Accordingly, all objections raised by Plaintiff on the basis of attorney work product are OVERRULED. Union Privilege No person has a privilege to refuse to disclose any matter, or to prevent another from being a witness, except as provided by statute. Cal. Evid. Code § 911.
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		As a preliminary matter, California does not recognize a standalone evidentiary privilege for communication between union members and their union representatives. <i>See</i> Cal. Evid. Code §§ 912, 970, 1014, 994, 954; <i>see also American Airlines, Inc. v. Super. Ct.</i>, 114 Cal. App. 4th 881, 887 (2003). Moreover, question number 99 does not seek disclosure of the substance of any specific conversation. Accordingly, the objection to question number 99 based on an asserted union privilege is OVERRULED. Legal Contention Questions at Deposition In <i>Rifkind v. Superior Court</i>, the Court held that contention questions . . . are not proper in the deposition of a party who is represented by counsel. <i>Rifkind v. Super. Ct.</i>, 22 Cal. App. 4th 1255, 1263 (1994). The court defined legal contention questions as questions that ask a party deponent to state all facts, list all witnesses, and identify all documents that support or pertain to a particular contention in that party's pleadings. <i>Id</i> at 1258. The court emphasized that "questions at a deposition asking the person deposed about the basis for, or information about, a factual conclusion or assertion . . . is quite proper to ask[.]" <i>Id</i> at 1259. Thus, <i>Rifkind</i> does not preclude questions seeking the factual basis for a party's assertion or conclusions merely because those facts may ultimately bear on the party's claims. Here, Plaintiff's attorney raised objections as to questions 20-21, 25, 30, 46-49, 54, 57, 59, 70-71, 74-81, 84, 86, and 89-90 on the ground that the questions improperly sought Plaintiff's legal contentions in violation of <i>Rifkind</i>. <i>See generally</i> ROA 303. The Court finds the objections raised to questions 20-21, 25, 46-49, 54, 57, 59, 70-71, 74-81, 84, 86, and 89-90 do not require Plaintiff to marshal <i>all</i> facts, witnesses, or documents in support of a particular legal contention. Rather, the Court finds these questions seek Plaintiff's own personal beliefs or opinions (<i>e.g.</i>, whether Plaintiff believed his termination caused him emotional injuries).
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	Accordingly, the objections to questions 20-21, 25, 46-49, 54, 57, 59, 70-71, 74-81, 84, 86 and 89-90 are OVERRULED. As to question 30, Plaintiff was asked: “In your own words, why are you suing the City of Santa Ana and the Santa Ana Police Department?” Unlike the questions discussed above, question 30 may call upon Plaintiff to articulate the legal and factual basis for his claims against the City of Santa Ana and the Santa Ana Police Department. To the extent the question seeks Plaintiff’s legal contentions or requires him to articulate the legal theories underlying his claims, it constitutes an improper legal contention question under <i>Rifkind</i>. Accordingly, the objection raised as to question 30 is SUSTAINED IN PART, to the extent it calls for Plaintiff to state his legal contentions. The objection is OVERRULED to the extent the question seeks factual information within Plaintiff’s own personal knowledge. Sanctions re: Motions to Compel Deposition Under California Code of Civil Procedure code section 2025.480(j) a court must impose mandatory sanctions “under Chapter 7 . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production [at deposition], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2025.480(j). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011)). To avoid sanctions, a party may show “substantial justification” for his or her position—<i>i.e.</i>, a rational basis to conclude that the party’s failure to fulfill its discovery obligations was justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Prop. v. Lyon/Copley Corona Assocs.</i>, 46 Cal. App. 4th 1542, 1557 (1996)); <i>see also</i>
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	Cal. Civ. Proc. Code § 2030.090(d); <i>U.S. Swimming, Inc., supra</i>, 200 Cal. App. 4th at 1435. The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, the Court does not find any substantial justification for Plaintiff’s opposition to this Motion. Accordingly monetary sanctions are mandatory. Assigning Liability for Monetary Discovery Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts <i>shall</i> impose monetary sanctions absent a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence
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		that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations shows attorney attempted to convince client to comply). If the Court finds that both share responsibility, then sanctions can be imposed jointly and severally. <i>See generally Cornerstone, supra</i>, 56 Cal. App. 5th at 799. "An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney's actions were in some way improper and contributed to the disobedience of the court order." <i>Corns, supra</i>, 181 Cal. App. 3d at 200; <i>see Ghanooni, supra</i>, 20 Cal. App. 4th at 261. Illustrating this point, the <i>Ghanooni</i> court reversed a lower court's order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 256. The court found that counsel's mere opposition to a motion to compel X-rays from their client did not give rise to an inference that counsel advised disobedience in the first instance, where the client's refusal was attributable to their generalized fear of exposure to radiation, which is not sufficient justification to refuse a motion to compel. <i>Id.</i>; <i>see Kwan, supra</i>, 58 Cal. App. 5th at 83. Here, the Court finds that Plaintiff's refusal to answer the questions posed at the Deposition is not attributable to client misconduct. Instead, the Court attributes the misconduct directly on Plaintiff's counsel as he unjustifiably advised Plaintiff not to answer numerous questions at the Deposition. Accordingly, monetary sanctions are appropriate upon Plaintiff's counsel only. Determining a Reasonable Sanctions Amount
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		Three principles govern the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 790 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> at 791 (citing <i>Parker</i>, 149 Cal. App. 4th at 294). "After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions." <i>In re Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Having weighed the three aforementioned principles, the Court finds that the sanction in the amount of \$9,275 sought by Defendant is reasonable and appropriate. Accordingly, Defendant's Motion to Compel Further Deposition Testimony is GRANTED IN PART, and monetary sanctions are IMPOSED upon Plaintiff's counsel, Corey W. Glave, in the total collective amount of \$9,275, due and payable to Defendant's counsel, Everett Dorey LLP, no later than sixty (60) days after receiving notice of this Order. Plaintiff's objection raised as to question 30 is SUSTAINED IN PART, to the extent it calls for Plaintiff to state his legal contention and OVERRULED IN PART, to the extent it seeks factual information within Plaintiff's own personal knowledge. Plaintiff's request ordering sanctions upon defense counsel in the amount of \$7,500 is DENIED.
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		Plaintiff is ordered to appear for deposition at a mutually agreeable date, time, and location, and provide answers to questions he previously refused to answer, as well as any reasonably related follow up questions, at the original Deposition in accordance with this Order by no later than fourteen (14) days after receiving notice of this Order. Defense counsel to give notice.